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# Terms of Service

These new terms of service will be taking effect on September 3, 2026. See [here](#) to view the old terms.

Date of Last Revision: August 10, 2026

Effective Date: September 3, 2026

## Acceptance of These Terms of Service

Suno Inc. (“Suno,” “we,” “us,” or “our”) provides our services (described below) and related content to you through our website(s) located at <https://suno.com/> (the “Site”), through any third-party social platforms such as Discord, and through our mobile applications and related technologies (“Mobile Apps”, and collectively, such Mobile Apps and the Site, including any content, tools, features, functionality and technology offered on or through our Site or Mobile Apps, the “Service”). All access and use of the Service is subject to the terms and conditions contained in these Terms of Service (as amended from time to time, these “Terms of Service”). By accessing, browsing, or otherwise using the Site, Mobile Apps, or any other aspect of the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service. If you do not accept the terms and conditions of these Terms of Service, you will not access, browse, or otherwise use the Service.

We reserve the right, at our sole discretion, to change or modify portions of these Terms of Service at any time. If we do this, we will post the changes on this page and will indicate at the top of this page the date these Terms of Service were last revised. You may read a current, effective copy of these Terms of Service by visiting the “Terms of Service” link on the Site. We will also notify you of any material changes, either through the Service user interface, a pop-up notice, email, or through other reasonable means. Your continued use of the Service after the date any such changes become effective constitutes your acceptance of the new Terms of Service but users who do not wish to continue under the updated Terms of Service must close their account prior to their renewal date or thirty (30) days after the effective date, whichever occurs first. You should periodically visit this page to review the current Terms of Service so you are aware of any revisions. If you do not agree to abide by these or any future Terms of Service, you will not access, browse, or use (or continue to access, browse, or use) the Service.

*PLEASE READ THESE TERMS OF SERVICE CAREFULLY, AS THEY CONTAIN AN AGREEMENT TO ARBITRATE AND OTHER PROVISIONS THAT AFFECT YOUR LEGAL RIGHTS. THE AGREEMENT TO ARBITRATE REQUIRES (WITH LIMITED EXCEPTION) THAT ANY DISPUTES THAT ARISE BETWEEN YOU AND US BE RESOLVED THROUGH BINDING*

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our Privacy Policy, located at <https://www.suno.com/privacy> (the “Privacy Policy”). By using the Service, you consent to our collection, use and disclosure of personal data and other data as outlined therein.

**Additional Terms:** In addition, when using certain features through the Service, you will be subject to any additional terms applicable to such features that may be posted on or within the Service from time to time. All such terms are hereby incorporated by reference into these Terms of Service.

### **Accessing the Service**

**Service Description:** The Service is designed to process input data, information, and content that you provide in the form of code, video, images, information, data, text, software, music, sound and other audio, photographs, graphics, messages, and other materials and mediums (collectively referred to as the “Submissions”) and generate and return audio and visual output based on those Submissions (“Output”, and together with the Submissions, “Content”). The Service may include a public forum where Content can be shared in a productive environment with other users.

**Age and Eligibility Requirements:** By accessing or using the Service in any manner, you affirmatively represent and warrant that: (i) you are 18 years of age or older and have the legal capacity to enter into these Terms of Service; or (ii) you are at least 13 years of age, you have read and understood these Terms of Service, and your parent or legal guardian has reviewed these Terms of Service and provided their express, prior consent to your use of the Service in accordance with these Terms.

If you are under 13 years of age, you are not permitted to register for an account, access, or otherwise use the service in any capacity. If you do not meet the applicable age requirements set forth in these Terms of Service, you must immediately cease all use of the Service. Suno may impose additional age restrictions on certain Suno features from time to time.

By using the Services, you represent, warrant, and agree that: (a) you are legally able to form a binding contract with Suno; (b) you are not a person who is barred from using the Services under the laws of the United States or any other applicable jurisdiction — including, for example, that you do not appear on the U.S. Treasury Department’s list of Specially Designated Nationals or face any other similar prohibition; and (c) you will comply with these Terms (including any other terms and policies referenced in these Terms, such as the Community Guidelines) and all applicable local, state, national, and international laws, rules, and regulations.

If you are using the Services on behalf of a business or some other entity, you represent that you are authorized to bind that business or entity to these Terms and you agree to these Terms on behalf of that business or entity (and all references to “you” and “your” in these

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It is very important that you only upload, post, publish, or display (hereinafter, “uploading”) Submissions that you have rights to use and provide hereunder. By uploading any Submission, you represent and warrant that:

- you have, or have obtained, all rights, licenses, consents, permissions, power and/or authority necessary to submit and use (and allow us to use) such Submission in connection with the Service, including for the purpose of generating your Output or Voice Model;
- your Submissions and the use thereof by the Service, including to generate Output and, if applicable, your Voice Model, will not violate any law or any third party's rights, terms and conditions associated with such Submission; and
- no other licenses, permissions, consents or authorizations must be obtained from or payments made to any other person or entity by us (or any third party deriving any rights or obligations from us) arising out of or related to our use of your Submissions, including to create your Output or your Voice Model and/or to train, develop, fine-tune or otherwise improve the Service and any related artificial intelligence or machine learning models.

**Suno Chat:** As part of the Service, we may make available an artificial intelligence-powered chat assistant known as Suno Chat. You may only use Suno Chat to facilitate your creation and refinement of music and other Output via the Service, and not for any other purpose unless we allow otherwise in writing.

**Voice Model:** Our Service may allow you to create a voice model resembling your own voice that can be used with Output (“Voice Model”). If you want to use the Service to create a Voice Model, you will need to upload Submissions that include audio recordings of your voice. By creating a Voice Model, you agree that you are directing the Service to create a means by which to imitate or resemble your voice.

You agree that you can only create a Voice Model resembling your own voice. To be clear – this means that you expressly agree not to create, or attempt to create, a Voice Model of another person and you will not upload any Submission that includes an audio recording of another person’s voice when creating your Voice Model. We reserve the right to remove your Voice Model at any time if we determine in our sole discretion it is not your own voice.

**Your Registration Obligations:** You may be required to register with Suno or provide information about yourself (e.g., name and email address) in order to access and use certain features of the Service. If you choose to register for the Service, you agree to provide and maintain true, accurate, current, and complete information about yourself as prompted by the Service’s registration form. Registration data and certain other information about you are governed by our Privacy Policy.

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fees on a pro rata basis, based upon the number of months left in the pre-payment period.

**Member Account, Password and Security:** You are responsible for maintaining the confidentiality of your password and account details, if any, and are fully responsible for any and all activities that occur under your password or account. You agree to (a) immediately notify Suno of any unauthorized use of your password or account or any other breach of security, and (b) ensure that you exit from your account at the end of each session when accessing the Service. Suno will not be liable for any loss or damage arising from your failure to comply with this paragraph.

**Modifications to Service:** Suno reserves the right to modify, suspend or discontinue, temporarily or permanently, the Service (or any part thereof) with or without notice. You agree that Suno will not be liable to you or to any third party for any modification, suspension or discontinuance of the Service.

**General Practices Regarding Use and Storage:** You acknowledge that Suno may establish general practices and limits concerning use of the Service, including the maximum period of time that data or other content will be retained by the Service and the maximum storage space that will be allotted on Suno's or its third-party service providers' servers on your behalf. You acknowledge that Suno reserves the right to terminate accounts (and all of their corresponding Submissions and Output) that are inactive for an extended period of time. You further acknowledge that Suno reserves the right to change these general practices and limits at any time, in its sole discretion, with or without notice.

### **Conditions of Access and Use**

**User Conduct:** You are solely responsible for any use of the Service and all Submissions that you make available to Suno, including by uploading Submissions via the Service or by communicating or otherwise making available Submissions to other users of the Service, and for any Outputs or your Voice Model that you generate via the Service. You assume all risk associated with Submissions and your Voice Model, including the transmission thereof, and you have sole responsibility for the accuracy, quality, legality and appropriateness of your Submissions and Voice Model. The posting of Content on the Service by users does not indicate any approval or endorsement by Suno of such Content. Suno is not responsible for, and disclaims, any and all liability in connection with Content or any act of accessing, browsing, contributing to or otherwise using the Service. In no event will you use the Output or your Voice Model to compete with Suno, including to create a competing music-generation product or service. The list below provides examples of the kinds of Submissions or uses that are illegal or prohibited by Suno. Suno reserves the right to investigate and take appropriate legal action against anyone who, in Suno's sole discretion, violates this provision, including removing the offending content from the Service, suspending or terminating the account of such violators, and reporting the violator to law enforcement authorities. You agree to not use the Service to:

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fiduciary relationships; (iii) contains software viruses or any other computer code, files or programs designed to interrupt, destroy, or limit the functionality of any computer software or hardware or telecommunications equipment; (iv) poses or creates a privacy or security risk to any person; (v) constitutes unsolicited or unauthorized advertising, promotional materials, commercial activities and/or sales, junk mail, spam, chain letters, pyramid schemes, contests, sweepstakes, or any other form of solicitation; (vi) is (or is used for or in connection with any purpose, initiative, activity, product or service that is) unlawful, harmful, threatening, abusive, harassing, tortious, excessively violent, defamatory, vulgar, obscene, pornographic, libelous, invasive of another's privacy, hateful, discriminatory, or otherwise objectionable; or (vii) in the sole judgment of Suno, is objectionable or which restricts or inhibits any other person from using or enjoying the Service, or which may expose Suno or its users to any harm or liability of any type;

2. interfere with or disrupt the Service or servers or networks connected to the Service, or disobey any requirements, procedures, policies, or regulations of networks connected to the Service;
3. violate any applicable local, state, national, or international law, or any regulations having the force of law;
4. impersonate any person or entity, or falsely state, imply or otherwise misrepresent your affiliation with any person or entity (including by generating, making available, promoting, labelling or otherwise using Output or a Voice Model in a manner that suggests that such Output or Voice Model was created by or otherwise associated with an individual who was not the creator thereof);
5. post any private information, or otherwise solicit, harvest, collect or disclose email addresses or other information about another user or any other person without his or her express consent or for the purposes of sending unsolicited emails or other unsolicited communications;
6. advertise or offer to sell or buy any goods or services for any business purpose that is not specifically authorized;
7. imply that Suno endorses any of your Submissions, Output, Voice Model, statements or positions;
8. instigate, further or promote any criminal activity or enterprise or provide instructional information about illegal activities;
9. obtain or attempt to access or otherwise obtain any content or information through any means not intentionally made available or provided for through the Service;

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- 1.1. circumvent, remove, alter, deactivate, degrade, or thwart any of the content protections in or geographic restrictions on any content (including Service Content (as defined below)) available on or through the Service, including through the use of virtual private networks;
- 1.2. engage in or use any data mining, robots, scraping, or similar data gathering or extraction methods; or
- 1.3. if you are blocked by Suno from accessing the Service (including by blocking your IP address), you agree not to implement any measures to circumvent such blocking (e.g., by masking your IP address or using a proxy IP address or virtual private network).

**Fees:** To the extent the Service or any portion thereof is made available for any fee, you may be required to select a payment plan and provide information regarding your credit card or other payment instrument. You represent and warrant to Suno that such information is true and that you are authorized to use the payment instrument. You will promptly update your account information with Suno or the Payment Processor (as defined below), as applicable, of any changes (for example, a change in your billing address or credit card expiration date) that may occur. You agree to pay Suno the amount that is specified in the payment plan in accordance with the terms of such plan and these Terms of Service. If your payment plan includes an ongoing subscription that is automatically renewed periodically, you hereby authorize Suno (through the Payment Processor) to bill your payment instrument in advance on such periodic basis in accordance with the terms of the applicable payment plan until you terminate your account, and you further agree to pay any charges so incurred. If you dispute any charges you must let Suno know within sixty (60) days after the date that Suno charges you, or within such longer period of time as may be required under applicable law. Details on our free and paid subscription offerings, including prices for paid subscriptions, are listed at <https://suno.com>. We reserve the right to change Suno's prices. If Suno does change prices, Suno will provide notice of the change through the Service user interface, a pop-up notice, email, or through other reasonable means. Your continued use of the Service after the price change becomes effective constitutes your agreement to pay the changed amount. You will be responsible for all taxes associated with the Service, other than taxes based on Suno's net income.

**Subscription Renewals and Cancellations:** You agree that if you purchase a subscription, your subscription will automatically renew at the subscription period frequency referenced on your subscription page (or if not designated, then monthly) and at the then-current rates, and your payment method will automatically be charged at the start of each new subscription period for the fees and taxes applicable to that period. To avoid future subscription charges, you must cancel your subscription before the subscription period renewal date by either cancelling your subscription within the account interface of the Site at

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Free Tier and Trials: We may, but are not obligated to, provide a free tier of the Service. You may not create more than one account to benefit from the free tier of the Service. If we believe you are not using the free tier in good faith, we may stop providing you access to the Service. From time to time, Suno may offer trials of paid tiers or paid features for a specified period without payment or at a reduced rate. Your trial period starts on the day you sign up for the trial and lasts for the duration indicated on your free trial confirmation email. Some trials require you to provide payment details before they begin. Your payment information will be stored and processed in accordance with our Privacy Policy. By providing it, you authorize us to begin charging you for the applicable paid subscription on the first day after your trial ends, at the recurring rate and billing interval we disclose to you in advance, unless you cancel before the trial ends.

TO AVOID BEING CHARGED, YOU MUST CANCEL BEFORE YOUR TRIAL ENDS. To cancel: (A) log into your account at <https://suno.com> or email us at [billing@suno.com](mailto:billing@suno.com); or (B) if you received your trial through a third party, cancel through that third party directly. If you cancel your trial account or decide not to purchase a paid version of the Service at the end of your trial period, your content or data associated with your trial account may no longer be available to you, and Suno may delete or remove any such content or data.

Payment Processing: Notwithstanding any amounts owed to Suno hereunder, SUNO DOES NOT PROCESS PAYMENT FOR ANY SERVICES. To facilitate payment for the Service via bank account, credit card, or debit card, we use a third-party payment processor ("Payment Processor"). Third-party payment processing services are subject to the Payment Processor's terms and conditions. By agreeing to these Terms of Service, users that use the payment functions of the Service also agree to be bound by the Payment Processor's terms and conditions, as the same may be modified from time to time. You hereby authorize the Payment Processor to store and continue billing your specified payment method even after such payment method has expired, to avoid interruptions in payment for your use of the Service. Suno assumes no liability or responsibility for any payments you make through the Service.

Refunds and Cancellations: Payments made by you hereunder are final and non-refundable, unless otherwise determined by Suno. Notwithstanding the foregoing, nothing in this section limits any statutory refund rights you may have under applicable law.

Use of the Mobile App: You are responsible for providing the mobile device, wireless service plan, software, Internet connections and/or other equipment or services that you need to download, install and use the Mobile App. We do not guarantee that the Mobile App can be accessed and used on any particular device or with any particular service plan. We do not guarantee that the Mobile App will be available in, or that orders for our paid Services can be placed from, any particular geographic location. As part of the Services and to update you regarding the status of deliveries, you may receive push notifications, local client notifications,



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have control over the Push Messages settings, and can opt in or out of these Push Messages through the Services or through your mobile device's operating system (with the possible exception of infrequent, important service announcements and administrative messages). Please check with your wireless service provider to determine what fees apply to your access to and use of the Mobile App, including your receipt of Push Messages from Suno. You are solely responsible for any fee, cost or expense that you incur to download, install and/or use the Mobile App on your mobile device, including for your receipt of push messages from Suno.

**Mobile Software from the Apple App Store:** The following terms and conditions apply to you only if you are using the Mobile App from the Apple Inc.'s ("Apple") App Store. To the extent the other terms and conditions of these Terms of Service are less restrictive than, or otherwise conflict with, the terms and conditions of this paragraph, the more restrictive or conflicting terms and conditions in this paragraph apply, but solely with respect to your use of the Mobile App from the Apple App Store. You acknowledge and agree that these Terms of Service are solely between you and Suno, not Apple, and that Apple has no responsibility for the Mobile App or content thereof. Your use of the Mobile App must comply with the App Store's applicable terms of use. You acknowledge that Apple has no obligation whatsoever to furnish any maintenance and support services with respect to the Mobile App. In the event of any failure of the Mobile App to conform to any applicable warranty, you may notify Apple, and Apple will refund the purchase price, if any, for the Mobile App to you. To the maximum extent permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the Mobile App, and any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty will be solely governed by these Terms of Service. You and Suno acknowledge that Apple is not responsible for addressing any claims of yours or any third party relating to the Mobile App or your possession and/or use of the Mobile App, including, but not limited to: (a) product liability claims, (b) any claim that the Mobile App fails to conform to any applicable legal or regulatory requirement, and (c) claims arising under consumer protection or similar legislation. You and Suno acknowledge that, in the event of any third party claim that the Mobile App or your possession and use of that Mobile App infringes that third party's intellectual property rights, Suno, not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim to the extent required by these Terms of Service. You must comply with applicable third party terms of agreement when using the Mobile App. You and Suno acknowledge and agree that Apple, and Apple's subsidiaries, are third party beneficiaries of these Terms of Service as they relate to your use of the Mobile App, and that, upon your acceptance of these Terms of Service, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms of Service against you as a third party beneficiary thereof.

## Software



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or otherwise transfer any right in the Software. Any rights not expressly granted herein are reserved by Suno.

Special Notice for International Use; Export Controls: Suno is headquartered in the United States. Whether inside or outside of the United States, you are solely responsible for ensuring compliance with the laws of your specific jurisdiction. Software available in connection with the Service and the transmission of applicable data, if any, is subject to United States export controls. No Software may be downloaded from the Service or otherwise exported or re-exported in violation of U.S. export laws.

### **Intellectual Property Rights**

Service Content: You acknowledge and agree that the Service may contain Content or features ("Service Content") that are protected by copyright, patent, trademark, trade secret, or other proprietary rights and laws. Except as expressly authorized by Suno or otherwise under these Terms of Service, you agree not to modify, copy, frame, scrape, rent, lease, loan, sell, distribute, or create derivative works based on the Service or the Service Content, in whole or in part, except that the foregoing does not apply to Content that you upload to or make available through the Service in accordance with these Terms of Service. Any use of the Service or the Service Content other than as specifically authorized herein is strictly prohibited.

Trademarks: The Suno name and logos are trademarks and service marks of Suno (collectively the "Suno Trademarks"). Other company, product, and service names and logos used and displayed via the Service may be trademarks or service marks of their respective owners who may or may not endorse or be affiliated with or connected to Suno. Nothing in these Terms of Service or the Service should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of Suno Trademarks displayed on the Service, without our prior written permission in each instance. All goodwill generated from the use of Suno Trademarks will inure to our exclusive benefit.

Third-Party Material: Under no circumstances will Suno be liable in any way for any content or materials of any third parties (including users), including for any errors or omissions in any content, or for any loss or damage of any kind incurred as a result of the use of any such content. You acknowledge that Suno does not pre-screen content, but that Suno and its designees will have the right (but not the obligation) in their sole discretion to refuse or remove any content that is available via the Service. Without limiting the foregoing, Suno and its designees will have the right to remove any content that violates these Terms of Service, Suno's community guidelines at <https://suno.com/community-guidelines>, or is deemed by Suno, in its sole discretion, to be otherwise objectionable. You agree that you must evaluate, and bear all risks associated with, the use of any content, including any reliance on the accuracy, completeness, or usefulness of such content.

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all right, title, and interest in and to your Submissions. Nothing in these Terms of Service transfers or assigns to Suno any ownership interest in your Submissions, and no license granted herein shall be construed to diminish, extinguish, or impair your ownership of your Submissions.

By using the Service or otherwise transmitting Submissions to us, you are directing Suno to store those Submissions, and grant to Suno and our affiliates, successors, assigns, and designees a worldwide, non-exclusive, fully paid-up, sublicensable (directly and indirectly through multiple tiers), assignable, royalty-free, perpetual, irrevocable right and license to use, reproduce, store, modify, distribute, create derivative works based on, perform, display, communicate, transmit and otherwise make available any and all Content (in whole or in part), in each case, in any media now known or hereafter developed, in connection with the provision, use, monetization, promotion, marketing, and improvement of our products and services, including the Service and the artificial intelligence and machine learning models related to the Service. This license to your Content and Voice Model includes a license to your likeness, voice rights and other indicia of your persona that may be embodied in your Content or Voice Model. For the avoidance of doubt, this license authorizes us to make your Content (including Output that incorporates your Voice Model, but, for clarity, not your Voice Model itself) available to and sublicense such Content to other users of the Service as necessary to provide the Service, and you further grant to Suno the worldwide, fully paid-up, sublicensable, assignable, perpetual and irrevocable right to identify to the public (both on and off the Service) that Output (or any of it) was generated via the Service. Such additional uses by Suno and other users of the Service is made without compensation to you or any other provider of the Submissions with respect to the Content or your Voice Model, as the use of the Service by you is hereby agreed as being sufficient compensation for the Content, your Voice Model and grant of rights herein. Furthermore, and for the avoidance of doubt, you irrevocably waive any and all so-called “moral rights” or “droit moral” that may exist in or in connection with the Content or your Voice Model. You acknowledge that to the extent that you include personally identifiable information in the Submissions, we may republish such information. We may, but have no obligation to, monitor the Content or your Voice Model, you acknowledge and agree that we may do one or all of the following: (i) monitor the Content and your Voice Model; (ii) alter, edit, or remove any Content or Voice Model in whole or in part; or (iii) disclose any Content.

**Pro and Premier Accounts:** Subject to your compliance with these Terms of Service, if you are a user who has subscribed to the Pro or Premier paid tier of the Service, Suno hereby assigns to you all of its right, title and interest in and to any Output owned by Suno and generated from Submissions made by you through the Service, provided such Output will remain subject to these Terms of Service including any applicable commercial use restrictions. Due to the nature of machine learning, Suno makes no representation or warranty to you that any copyright will vest in any Output.

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**Remixes:** Unless otherwise provided for in connection with a separate offering, if you are a user that activates features that permit other users of the Service (“Remixers”) to remix your Outputs (each, a “Remix”), you agree that all Remixes shall be a joint work owned jointly and equally by you and the Remixer to the extent that copyright vests in any such Remix.

Furthermore, if you are a joint owner of a Remix generated by these Service features, and regardless of whether you are a free Service tier user or a subscriber to a paid Service tier, you additionally covenant and agree that the Remix may only be used for lawful, personal and non-commercial purposes, regardless of your subscription tier or whether the Remix is a permitted Download.

**Commercial Use Restriction:** Except as permitted in the next section, you agree not to display, distribute, license, perform, publish, reproduce, duplicate, copy, create derivative works from, modify, sell, resell, grant access to, transfer, or otherwise use or exploit any portion of the Service, and any Output or Voice Model, for any commercial purposes.

**Permitted Commercial Use:** You may commercially exploit Output solely to the extent it adheres to Suno's Conditions of Access and Use as outlined above provided you have obtained a permitted download of that Output in accordance with the download allocations for your applicable service tier (each, a “Download”). You may not commercially exploit Output that has not been downloaded by you through an approved channel under these Terms of Service. The number of Downloads you are permitted per month depends on your service tier, as set out at <https://suno.com/account>, which may be updated from time to time. You covenant and agree, that, other than the permitted commercial use above, you will not use or exploit any Output for commercial purposes on or outside the Service. You agree not to remove, alter, obscure or circumvent any fingerprint, watermark or metadata Suno appends to an Output for the purpose of concealing or misrepresenting the provenance, service tier, or status of that Output. You may edit, process, or convert the format of an Output you are otherwise permitted to use to the extent such use is incidental. Obtaining a copy of an Output by any means other than a download channel made available by Suno is prohibited (for example, recording or stream ripping are prohibited). We reserve the right to append a fingerprint, watermark, or metadata indicating the applicable service tier of an Output and whether such Output was a permitted Download.

The restrictions set forth in this “Permitted Commercial Use” section are contractual covenants between you and Suno only. They are not, and shall not be construed as, reservations of, conditions on, or carve-outs from any right, title or interest assigned to you under these Terms of Service, and they apply as contractual obligations regardless of whether copyright or any other proprietary right subsists in any Output. Any assignment made to you under the paragraphs above, and the commercial use rights described in this paragraph with respect to a Download you have obtained, are perpetual and are not affected by your exhaustion of your Download allotment, by any later change to allotments or pricing, or by the expiry, cancellation, downgrade or suspension of your subscription. Nothing in this paragraph permits commercial use of any Remix.

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Suno, governs whether you may make that use on that platform. Applicable rights holders may also have the right to collect revenue related to distribution of Outputs on third party platforms.

For the avoidance of doubt, Output may be publicly available in a third party application such as Discord, where it may be viewable, downloadable, and modified by other users of that third party application. If the Output becomes publicly available in such third-party application, you agree that other users have a right to access, display, view, store, modify, and copy such Output; provided, however, that you may change your settings to bypass these public sharing default settings so that Output generated will remain private.

Due to the nature of machine learning, Output may not be unique across users and the Service may generate the same or similar output for a third party. Other users may provide similar submissions and receive the same output. Output that is requested by and generated for other users is not your Content.

You hereby authorize Suno and its third-party service providers to derive statistical and usage data relating to your use of the Service ("Usage Data"). We may use Usage Data for any purpose in accordance with applicable law and our Privacy Policy.

Any questions, comments, suggestions, ideas, feedback, reviews, or other information about the Service ("Feedback") provided by you to Suno are non-confidential, and Suno will be entitled to the unrestricted use and dissemination of Feedback for any purpose, commercial or otherwise, without acknowledgment, attribution, or compensation to you.

You acknowledge and agree that Suno may preserve Content and your Voice Model and may also disclose Content and your Voice Model if required to do so by law or in the good faith belief that such preservation or disclosure is reasonably necessary to: (a) comply with legal process, applicable laws, or government requests; (b) enforce these Terms of Service; (c) respond to claims that any content violates the rights of third parties; or (d) protect the rights, property, or personal safety of Suno, its users, or the public. You understand that the technical processing and transmission of the Service, including Content, may involve (i) transmissions over various networks; and (ii) changes to conform and adapt to technical requirements of connecting networks or devices.

**Copyright Complaints:** Suno respects the intellectual property of others, and we ask our users to do the same. If you believe that your work has been copied on the Services in a way that constitutes copyright infringement, or that your intellectual property rights have been otherwise violated, you should notify Suno of your infringement claim in accordance with the procedure set forth below.

Suno will process and investigate notices of alleged infringement and will take appropriate actions under the Digital Millennium Copyright Act ("DMCA") and other applicable intellectual property laws with respect to any alleged or actual infringement. A notification of claimed

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Suno Legal, 17 Dunster Street, Floor 4, Cambridge, MA 02138

To be effective, the notification must be in writing and contain the following information:

- a physical or electronic signature of a person authorized to act on behalf of the owner of the copyright or other intellectual property interest that is allegedly infringed;
- identification of the copyrighted work or other intellectual property that you claim has been infringed, or, if multiple copyrighted works or other intellectual property are covered by a single notification, a representative list of such works or other intellectual property;
- identification of the content that is claimed to be infringing or to be the subject of infringing activity, and where the content that you claim is infringing is located on the Service, with enough detail that we may find it on the Service;
- your address, telephone number, and email address;
- a statement by you that you have a good faith belief that the disputed use is not authorized by the copyright or intellectual property owner, its agent, or the law; and
- a statement by you that the information in your notice is accurate and, under penalty of perjury, that you are the copyright or intellectual property owner or are authorized to act on the behalf of the owner of the copyright or intellectual property that is allegedly infringed.

Counter-Notice: If you believe that your content that was removed (or to which access was disabled) is not infringing, or that you have the authorization from the copyright owner, the copyright owner's agent, or pursuant to the law, to upload and use the content, you may send a written counter-notice containing the following information to the Copyright Agent:

- your physical or electronic signature;
- identification of the content that has been removed or to which access has been disabled and the location at which the content appeared before it was removed or disabled;
- a statement by you, made under penalty of perjury, that you have a good faith belief that the content was removed or disabled as a result of mistake or a misidentification of the content to be removed or disabled; and
- your name, address, telephone number, and email address, a statement that you consent to the jurisdiction of the federal court located within Massachusetts and a

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notice to the original complaining party informing them that Suno may replace the removed content or cease disabling it within ten (10) business days. Unless the owner of the applicable copyrighted work or other intellectual property files an action seeking a court order against Suno or the user, the removed content may be replaced, or access to it restored, within ten (10) to fourteen (14) business days or more after receipt of the counter-notice, at our sole discretion.

**Repeat Infringer Policy:** In accordance with the DMCA and other applicable law, Suno has adopted a policy of terminating, in appropriate circumstances and at Suno's sole discretion, the accounts of users who are deemed to be repeat infringers. Suno may also at its sole discretion limit access to the Service and/or terminate the accounts of any users who infringe any intellectual property rights of others, whether or not there is any repeat infringement.

### **Third-Party Services and Websites**

The Service may display, include, make available, or provide links or other access to services, sites, software, applications, content, data, technology, and resources that are provided or otherwise made available by third parties (the "Third-Party Services"). Additionally, you may enable or log in to the Service via various online Third-Party Services, such as social media and social networking services like Discord. Your access and use of the Third-Party Services may also be subject to additional terms and conditions, privacy policies, or other agreements with such third party, and you may be required to authenticate to or create separate accounts to use Third-Party Services on the websites or via the technology platforms of their respective providers. Some Third-Party Services will provide us with access to certain information that you have provided to third parties, including through such Third-Party Services, and we will use, store and disclose such information in accordance with our Privacy Policy. For more information about the implications of activating Third-Party Services and our use, storage and disclosure of information related to you and your use of such Third-Party Services within the Service, please see our Privacy Policy. Suno has no control over and is not responsible for such Third-Party Services, including for the accuracy, availability, reliability, or completeness of information shared by or available through Third-Party Services, or on the privacy practices of Third-Party Services. We encourage you to review the privacy policies of the third parties providing Third-Party Services prior to using such services. You, and not Suno, will be responsible for any and all costs and charges associated with your use of any Third-Party Services. Suno enables these Third-Party Services merely as a convenience and the integration or inclusion of such Third-Party Services does not imply an endorsement or recommendation. Any dealings you have with third parties while using the Service are between you and the third party. Suno will not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with use of or reliance on any Third-Party Services.

### **Indemnification**

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any kind, and injury (including death) arising out of or relating to your use of the Service, any Content, Voice Model or use thereof, your connection to the Service, your violation of these Terms of Service, or your violation of any rights of another, including through your generation or use of any Output or Voice Model. Suno will provide notice to you of any such claim, suit, or proceeding. Suno reserves the right to assume the exclusive defense and control of any matter which is subject to indemnification under this section, and you agree to cooperate with any reasonable requests assisting Suno's defense of such matter. You may not settle or compromise any claim against the Suno Parties without Suno's written consent.

### **Disclaimer of Warranties**

YOUR USE OF THE SERVICE AND ANY OUTPUT IS AT YOUR SOLE RISK. THE SERVICE AND ANY OUTPUT AND VOICE MODEL IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. THE SUNO PARTIES EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

THE SUNO PARTIES MAKE NO WARRANTY THAT (A) THE SERVICE WILL MEET YOUR REQUIREMENTS; (B) THE SERVICE WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE; (C) THE RESULTS THAT MAY BE OBTAINED FROM THE USE OF THE SERVICE WILL BE SUITABLE, ACCURATE OR RELIABLE; (D) YOUR USE OF ANY OUTPUT OR VOICE MODEL WILL NOT INFRINGE THE RIGHTS OF ANY THIRD PARTY; OR (E) THE QUALITY OF ANY PRODUCTS, SERVICES, INFORMATION, OR OTHER MATERIAL PURCHASED OR OBTAINED BY YOU THROUGH THE SERVICE WILL MEET YOUR EXPECTATIONS. YOU ACKNOWLEDGE THAT THE SERVICE USES EXPERIMENTAL TECHNOLOGY AND MAY SOMETIMES PROVIDE INACCURATE OR OFFENSIVE CONTENT THAT DOES NOT REPRESENT THE VIEWS OF THE SUNO PARTIES.

Due to the nature of artificial intelligence and machine learning, your Output may not be unique and the Service may generate the same or similar output for a third party. Other users may provide similar input to the Service and receive the same or similar output from the Service. An input that is submitted by other users is not your Submission, and an output that is requested by and generated for other users is not your Output.

### **Limitation of Liability**

YOU EXPRESSLY UNDERSTAND AND AGREE THAT THE SUNO PARTIES WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY DAMAGES, OR DAMAGES FOR LOSS OF PROFITS INCLUDING DAMAGES FOR LOSS OF GOODWILL, USE, OR DATA OR OTHER INTANGIBLE LOSSES (EVEN IF THE SUNO PARTIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES), WHETHER BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE, RESULTING FROM: (A) THE USE OR THE INABILITY TO USE THE SERVICE OR ANY



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CONTENT, VOICE MODEL, TRANSMISSIONS OR DATA; (D) STATEMENTS OR CONDUCT OF ANY THIRD PARTY ON THE SERVICE; OR (E) ANY OTHER MATTER RELATING TO THE SERVICE. IN NO EVENT WILL THE SUNO PARTIES' TOTAL LIABILITY TO YOU FOR ALL DAMAGES, LOSSES, OR CAUSES OF ACTION EXCEED THE AMOUNT YOU HAVE PAID SUNO IN THE LAST SIX (6) MONTHS, OR, IF GREATER, ONE HUNDRED DOLLARS (\$100).

SOME JURISDICTIONS DO NOT ALLOW THE DISCLAIMER OR EXCLUSION OF CERTAIN WARRANTIES OR THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES. ACCORDINGLY, SOME OF THE LIMITATIONS OR DISCLAIMERS SET FORTH ABOVE MAY NOT APPLY TO YOU OR BE ENFORCEABLE WITH RESPECT TO YOU. IF YOU ARE DISSATISFIED WITH ANY PORTION OF THE SERVICE OR WITH THESE TERMS OF SERVICE, YOUR SOLE AND EXCLUSIVE REMEDY IS TO DISCONTINUE USE OF THE SERVICE.

### **Dispute Resolution (Including Arbitration Agreement, Class Action Waiver, and Jury Trial Waiver)**

PLEASE READ THIS DISPUTE RESOLUTION SECTION CAREFULLY AS IT AFFECTS YOUR LEGAL RIGHTS. IT INCLUDES AN ARBITRATION AGREEMENT THAT REQUIRES THAT MOST DISPUTES (AS DEFINED BELOW) BE RESOLVED THROUGH BINDING INDIVIDUAL ARBITRATION RATHER THAN IN COURT. ARBITRATION IS FINAL AND BINDING AND SUBJECT TO ONLY LIMITED REVIEW BY A COURT. IN ARBITRATION, THERE IS ALSO LESS DISCOVERY AND APPELLATE REVIEW THAN IN COURT. THIS SECTION ALSO INCLUDES A JURY TRIAL WAIVER AND A WAIVER OF ANY AND ALL RIGHTS TO PROCEED IN A CLASS, COLLECTIVE, CONSOLIDATED, PRIVATE ATTORNEY GENERAL, OR REPRESENTATIVE ACTION IN ARBITRATION OR IN LITIGATION TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.

#### **1. Arbitration Agreement**

**Binding Individual Arbitration:** Any dispute or claim arising out of or related to these Terms of Service, your use of the Service, any Content, any Voice Model, any advertising, or any aspect of your relationship or transactions with us—whether based in contract, statute, tort, fraud, misrepresentation, or any other legal theory—("Dispute") will be resolved through binding individual arbitration. Dispute shall be interpreted broadly, to the fullest extent permitted by the Federal Arbitration Act, and include, but not be limited to: (a) any dispute or claim that arose prior to these Terms of Service or any prior terms (including claims related to advertising); (b) any dispute or claim that is the subject of proposed class action litigation in which you are not a member of a certified class; and (c) any dispute or claim that arises after termination of these Terms of Service. Notwithstanding the foregoing, either you or we may bring or elect to have a Dispute heard in small claims court provided the Dispute remains in that court and proceeds only on an individualized (non-class, non-representative basis). Whether a Dispute falls within the jurisdictional limits of small claims court is for the small

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merits arbitrator is appointed, the arbitrator shall have discretion to proceed with the arbitration or to close the arbitration in lieu of small claims court. Dispute does not include any dispute or claim concerning the alleged violation of intellectual property rights (trademarks, patents, copyrights, and trade secrets). The arbitrator shall decide all issues except for the following, which are for a court of competent jurisdiction to decide: (a) issues that are specifically reserved for a court in these Terms of Service; (b) issues that relate to the scope, validity, or enforceability of the arbitration agreement, class action waiver, jury trial waiver, or any of the provisions of this Dispute Resolution Section; (c) issues that relate to the arbitrability of any Dispute; and (d) any dispute or disagreement as to whether these Terms of Service or any other version or set of terms apply to a Dispute. You and we agree that these Terms of Service constitute a transaction in interstate commerce and that this arbitration agreement will be interpreted and enforced in accordance with the Federal Arbitration Act and federal arbitration law (and not state arbitration law).

**Informal Dispute Resolution:** We want to address any disputes without needing arbitration. In the event that any Dispute arises between you and us, prior to initiating arbitration the party asserting the Dispute must first send the other party written notice (by registered mail) that includes all of the following information (the “Notice”): (a) contact information (including name, mailing address, telephone number, and the email address associated with your account); (b) information sufficient to identify any account, transaction, and interaction at issue; (c) a detailed description of the nature and basis of the Dispute, including any legal claims; and (d) a detailed description of the relief sought, including a good faith calculation for it. The Notice must be individualized and personally signed by the party asserting the Dispute (and their counsel, if represented). Your Notice to us must be sent to 17 Dunster Street, Floor 4, Cambridge, MA 02138 (“Notice Address”). Our Notice to you will be sent to the most recent contact information we have on file for you. For a period of sixty (60) days from receipt of a Notice (which can be extended by agreement of the parties), you and we agree to negotiate in good faith in an effort to informally resolve the Dispute. Completion of this informal dispute resolution process (“Process”) is a condition precedent to initiating arbitration. If the sufficiency of a Notice or compliance with this Process is at issue, such issue may be raised with and decided by a court of competent jurisdiction at either party’s election, and any arbitration shall be stayed. The court shall have the authority to enforce this condition precedent to arbitration, which includes the power to enjoin the filing or prosecution of arbitrations and the assessment or collection of arbitration fees. Nothing in this provision limits the right of a party to seek relief for non-compliance with this Process in arbitration with a Process Administrator or a merits arbitrator. All applicable limitations periods (including statutes of limitations) shall be tolled from the date of receipt of a Notice through the completion of this Process. You or we may commence arbitration only if the Dispute is not resolved through this Process.

**Arbitration Procedures:** The arbitration of any Dispute shall be administered by JAMS and conducted in accordance with the JAMS rules, including the JAMS Streamlined Rules and

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agreement, the parties shall agree on an administrator that will do so. If the parties cannot agree, they shall petition a court of competent jurisdiction to appoint an administrator that will do so. An arbitration demand must be accompanied by a certification of compliance with the Process, a copy of the Notice, disclose any person or entity with a financial stake or interest in the arbitration, and be personally signed by the party initiating arbitration (and counsel, if represented). By submitting an arbitration demand, the party and counsel represent that, as in federal court, they are complying with the requirements of Federal Rule of Civil Procedure 11(b). The arbitrator (and any process administrator) is authorized to impose any sanctions available under Federal Rule of Civil Procedure 11 on represented parties and their counsel. An arbitrator (and any process administrator) shall be appointed through a strike-and-rank process unless the parties agree otherwise. You may choose to have the arbitration conducted by a phone, video, or in-person hearing, or through written submissions, except any Dispute seeking \$25,000 or more or injunctive relief shall have an in-person or video hearing if the respondent elects one. You and we reserve the right to request a hearing in any matter from the arbitrator. You and a Suno representative will personally appear at any hearing (with counsel, if represented). Any in-person hearing will be held in the county in which you reside or at another mutually agreed location. An arbitrator (or a process administrator) may require the parties to personally appear at a case management conference to confirm that the arbitration is authorized. An arbitrator may award on an individual basis any relief that would be available in a court, including injunctive or declaratory relief only in favor of the individual party seeking relief and only to the extent necessary to provide relief warranted by that party's individual claim. To the fullest extent permitted by applicable law, you and we agree that each may bring claims against the other only in your or our individual capacity and not as a plaintiff or class member in any purported class, collective, private attorney general, or representative proceeding to the fullest extent permitted by applicable law. Further, unless both you and we agree otherwise, an arbitrator may not consolidate more than one person's claims and may not otherwise preside over any form of class, collective, private attorney general, or representative proceeding. An arbitrator must follow and enforce the Terms of Service and the law as a court would. If, after exhaustion of all appeals, any of these prohibitions on non-individualized injunctive or declaratory relief and class, collective, consolidated, private attorney general, or representative proceedings are found to be unenforceable with respect to a particular claim or request for relief (such as a request for public injunctive relief), then such a claim or request for relief will be decided by a court of competent jurisdiction, after all other claims and requests for relief are arbitrated. Dispositive motions shall be permitted in arbitration. The scope of any discovery shall be determined by the arbitrator while considering relevance and proportionality and taking into account that arbitration should be efficient, streamlined, and cost-effective for both parties. The arbitrator shall issue a reasoned written decision sufficient to explain their essential findings and conclusions. An award shall have no preclusive effect in any other arbitration or proceeding involving non-identical parties.

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arbitration fees, and you and we agree that the parties (and counsel, if represented) will work together in good faith to ensure that arbitration remains cost-effective for all parties and to implement the procedures in this arbitration agreement, which you and we agree have been designed to further this shared interest.

**Additional Procedures for Mass Arbitration:** Notwithstanding any other provision of this Arbitration Agreement, you and Suno agree that these Additional Procedures for Mass Arbitration (in addition to the other provisions of this arbitration agreement) shall apply if you choose to participate in a Mass Arbitration. If twenty-five (25) or more similar Disputes (including yours) are asserted against us by the same or coordinated counsel or are otherwise coordinated (“Mass Arbitration”), you agree that your Dispute might be delayed and ultimately proceed in court. The parties agree that as part of these procedures, a JAMS process administrator shall be appointed through a strike-and-rank process. In addition, our counsel and yours shall meet and confer in good faith in an effort to resolve the Disputes, streamline procedures, address the exchange of information, modify the number of Disputes to be adjudicated in any stage based on the specific matter, mediate or otherwise discuss resolution of the Disputes (separate from the mediation requirements below), and conserve the parties’ and JAMS’s resources. If your Dispute is part of a Mass Arbitration, any applicable limitations periods (including statutes of limitations) shall be tolled for your Dispute from the time that your Dispute is first submitted to JAMS until your Dispute is selected to proceed as part of a staged process or is settled, withdrawn, otherwise resolved, or opted out of arbitration pursuant to this provision.

- **Stage One:** If at least 50 Disputes are submitted as part of the Mass Arbitration, counsel for the claimants and counsel for Suno shall each select 25 Disputes to be filed and to proceed as cases in individual arbitrations as part of this initial staged process. The number of Disputes to be selected to proceed in Stage One can be modified by agreement of counsel for the parties (and if there are fewer than 50 Disputes, all shall proceed individually in Stage One). Each of the 50 (or fewer) cases shall be assigned to a different arbitrator and proceed individually. If a case is withdrawn before the issuance of an arbitration award, another claim shall be selected to proceed as part of Stage One. The remaining Disputes shall not be filed or deemed filed in arbitration nor shall any arbitration fees be assessed or collected in connection with those claims. After this initial set of proceedings, counsel for the parties shall participate in a global mediation session with a mediator jointly selected by counsel in an effort to resolve the remaining Disputes (as informed by the adjudications of cases in Stage One), and we shall pay the mediator’s fee.
- **Stage Two:** If the remaining Disputes have not been resolved at the conclusion of Stage One, the same staged process set forth for Stage One will repeat for Stage Two with 50 total Disputes proceeding in individual arbitrations except that arbitrators who presided over a case in Stage One may be appointed to preside

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Upon completion of the mediation set forth in Stage Two, each remaining Dispute (if any) that is not settled or not withdrawn shall be opted out of arbitration and may proceed in a court of competent jurisdiction consistent with the remainder of the Terms of Service including the provisions of the Dispute Resolution section. Counsel for the parties, however, may mutually agree in writing to proceed with the adjudication of some or all of the remaining Disputes in individual arbitrations consistent with the process set forth in Stage Two (except Disputes shall be randomly selected and mediation shall be elective by agreement of counsel) or through another mutually-agreeable process or, if the parties agree, through a process determined by a process administrator taking into account the spirit of this arbitration agreement that might include a staged or a batched process (whereby up to 100 Disputes are assigned to a single arbitrator to proceed individually with one set of fees). A court of competent jurisdiction shall have the authority to enforce the Additional Procedures for Mass Arbitration, including the power to enjoin the filing or prosecution of arbitrations and the assessment or collection of arbitration fees. The Additional Procedures for Mass Arbitration provision and each of its requirements are essential parts of this arbitration agreement. If, after exhaustion of all appeals, a court of competent jurisdiction decides that the Additional Procedures for Mass Arbitration apply to your Dispute and are not enforceable, then your Dispute shall not proceed in arbitration and shall only proceed in a court of competent jurisdiction consistent with the remainder of the Terms of Service including the Dispute Resolution section.

**Opt Out of Future Changes:** If we make any future changes to this arbitration agreement (other than a change to our contact information), you may reject any such change by sending your personally signed, written notice from the email address associated with your account to the following address within 30 days of the change to [support@suno.com](mailto:support@suno.com) and/or the Notice Address, with a clear statement that you wish to opt out of changes to the arbitration agreement. Such written notice does not constitute an opt out of arbitration altogether. By rejecting any future change, you are agreeing that you will arbitrate any Dispute between you and Suno in accordance with this version of the arbitration agreement.

## 2. Class Action Waiver and Jury Trial Waiver

YOU AND SUNO EACH AGREE THAT ANY PROCEEDING, WHETHER IN ARBITRATION OR IN LITIGATION, WILL BE CONDUCTED ONLY ON AN INDIVIDUAL BASIS AND NOT IN A CLASS, COLLECTIVE, PRIVATE ATTORNEY GENERAL, OR REPRESENTATIVE ACTION. YOU AND WE AGREE TO WAIVE ANY RIGHT TO BRING OR TO PARTICIPATE IN SUCH AN ACTION IN ARBITRATION OR IN COURT TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW. NOTWITHSTANDING THE FOREGOING, THE PARTIES RETAIN THE RIGHT TO PARTICIPATE IN A CLASS-WIDE SETTLEMENT. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, YOU AND WE WAIVE THE RIGHT TO A JURY TRIAL.

## 3. Choice of Law and Forum Selection

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Massachusetts shall have exclusive jurisdiction over any disputes and claims (except for claims brought in small claims court) that are not subject to arbitration or for any challenge to the enforceability of the arbitration agreement, class action waiver, or other provisions of the Dispute Resolution section. You and Suno consent to the jurisdiction of those courts and waive any objections as to personal jurisdiction or as to the laying of venue in such courts due to (a) inconvenient forum or (b) any other basis or any right to seek to transfer or change venue of any such action to another court.

### **Termination**

You agree that Suno, in its sole discretion, may suspend or terminate your account (or any part thereof) or use of the Service and remove and discard any content (including your Content or Voice Model) within the Service, for any reason in Suno's sole discretion, including for lack of use or if Suno believes that you have violated or acted inconsistently with the letter or spirit of these Terms of Service. Any suspected fraudulent, abusive, or illegal activity that may be grounds for termination of your use of the Service, may be referred to appropriate law enforcement authorities. Suno may also in its sole discretion and at any time discontinue or suspend providing the Service, or any part thereof, with or without notice. You agree that any termination of your access to the Service under any provision of these Terms of Service may be affected without prior notice, and acknowledge and agree that Suno may immediately deactivate or delete your account and all related information and files in your account and/or bar any further access to such files or the Service. Further, you agree that Suno will not be liable to you or any third party for any termination of your access to the Service.

The following provisions shall survive termination: General, Intellectual Property Rights, Dispute Resolution, Indemnification, Limitation of Liability, as well as any other sections of these Terms that, either explicitly or by their nature, must remain in effect even after termination of these Terms.

### **SMS Messaging**

Certain portions of the Service may allow us to contact you via telephone or text messages. You agree that we may contact you via telephone or text messages (including by an automatic telephone dialing system) at any of the phone numbers provided by you or on your behalf in connection with your use of the Service, including for marketing purposes. You understand that you are not required to provide this consent as a condition of purchasing any paid Service. You also understand that you may opt out of receiving text messages from us at any time, either by texting a reply with the word "STOP" using the mobile device that is receiving the messages, or by contacting [legal@suno.com](mailto:legal@suno.com). If you do not choose to opt out, we may contact you as outlined in our Privacy Policy.

### **User Disputes**

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## General

These Terms of Service (together with the terms incorporated by reference herein) constitute the entire agreement between you and Suno governing your access and use of the Service, and supersede any prior agreements between you and Suno with respect to the Service. You also may be subject to additional terms and conditions that may apply when you use Third-Party Services, third-party content or third-party software.

The failure of Suno to exercise or enforce any right or provision of these Terms of Service will not constitute a waiver of such right or provision.

Except as otherwise specifically provided herein, if any provision of these Terms of Service is found by a court of competent jurisdiction to be invalid, the parties nevertheless agree that the court should endeavor to give effect to the parties' intentions as reflected in the provision, and the other provisions of these Terms of Service remain in full force and effect.

You agree that to the extent permitted by applicable law, any claim or cause of action arising out of or related to use of the Service or these Terms of Service must be noticed within one (1) year after such claim or cause of action arose or be forever barred. A printed version of these Terms of Service and of any notice given in electronic form will be admissible in judicial or administrative proceedings based upon or relating to these Terms of Service to the same extent and subject to the same conditions as other business documents and records originally generated and maintained in printed form.

You may not assign these Terms of Service without the prior written consent of Suno, but Suno may assign or transfer these Terms of Service, in whole or in part, without restriction.

The section titles in these Terms of Service are for convenience only and have no legal or contractual effect. As used in these Terms of Service, the words "include" and "including," and variations thereof, will not be deemed to be terms of limitation, but rather will be deemed to be followed by the words "without limitation."

Notices to you may be made via either email or regular mail. The Service may also provide notices to you of changes to these Terms of Service or other matters by displaying notices or links to notices generally on the Service.

Suno will not be in default hereunder by reason of any failure or delay in the performance of its obligations where such failure or delay is due to civil disturbances, riot, epidemic, hostilities, war, terrorist attack, embargo, natural disaster, acts of God, flood, fire, sabotage, fluctuations or unavailability of electrical power, network access or equipment, or any other circumstances or causes beyond Suno's reasonable control.

Under California Civil Code Section 1789.3, California users are entitled to the following consumer rights notice: If you have a question or complaint regarding the Service, please



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Questions? Concerns? Suggestions?

Please contact us at [legal@suno.com](mailto:legal@suno.com) or 17 Dunster Street, Floor 4, Cambridge, MA 02138 to report any violations of these Terms of Service or to pose any questions regarding these Terms of Service or the Service.

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